

Federal Decree by Law No. (10) of 2025
Regarding Anti-Money Laundering, and Combating the Financing of
Terrorism and Proliferation Financing

We, Mohammed bin Zayed Al Nahyan, President of the United Arab Emirates,

- Having reviewed the Constitution;
- Federal Law No. (1) of 1972 Regarding the Competences of the Ministries and the Powers of Ministers, as amended;
- Federal Law No. (39) of 2006 Regarding International Judicial Cooperation in Criminal Matters, as amended;
- Federal Law No. (7) of 2014 Regarding Combating Terrorist Crimes, as amended;
- Federal Decree by Law No. (20) of 2018 Regarding Anti-Money Laundering, the Financing of Terrorism, and the Financing of Illegal Organizations, as amended;
- Federal Decree by Law No. (30) of 2021 Regarding Combating Narcotics and Psychotropic Substances, as amended;
- Federal Decree by Law No. (31) of 2021 Promulgating the Crimes and Penalties Law, as amended;
- Federal Decree by Law No. (34) of 2021 Regarding Countering Rumors and Cybercrimes, as amended;
- Federal Decree by Law No. (38) of 2022 Promulgating the Criminal Procedure Law, as amended; and
- Upon the proposal of the Minister of Finance, and the approval of the Cabinet,

Hereby promulgate the following Decree by Law:

Chapter One

Definitions

Article (1)

For the purposes of implementing the provisions of this Decree by law, the following terms and expressions shall have the meanings assigned to each of them, unless the context requires otherwise:

The State	:	The United Arab Emirates.
The Ministry	:	The Ministry of Finance.
The Minister	:	The Minister of Finance.
The Central Bank	:	The Central Bank of the United Arab Emirates.
The Governor	:	The Governor of the Central Bank.
The Supreme Committee	:	The Supreme Committee for the Supervision of the National Strategy for Anti-Money Laundering, Combating the Financing of Terrorism and Proliferation Financing.
The National Committee	:	The National Committee for Anti-Money Laundering, Combating the Financing of Terrorism, and Proliferation Financing.
The General Secretariat	:	The General Secretariat of the National Committee.
The Unit	:	The Financial Intelligence Unit established by virtue of the provisions of this Federal Decree by Law.
The Supervisory Authority	:	The federal and local authorities entrusted under the legislation with the supervision of the financial institutions, designated non-financial businesses and professions, virtual asset service providers, and non-profit organizations (NPOs); or the competent authorities responsible for granting approval to engage in an activity or profession, where no specific supervisory authority is designated by the legislation.

Law Enforcement Authorities	:	The federal and local authorities entrusted, pursuant to the provisions of this Federal Decree by Law and their applicable legislation, with combating, investigating, detecting, and gathering evidence in respect of the offenses, including Money Laundering, Predicate Offences, the Financing of Terrorism, and the Proliferation Financing.
Concerned Authorities	:	The governmental entities concerned with the implementation of any provision of this Decree by Law within the State.
The Executive Office	:	The Executive Office for Control and Non-Proliferation, concerned with the implementation of targeted financial sanctions within the State.
Targeted Financial Sanctions	:	The freezing of funds and the prohibition of making them available, directly or indirectly, for the benefit of any natural or legal person or organization designated by resolutions issued by the Cabinet regarding Terrorist Lists, or by the United Nations Security Council under Chapter VII of the Charter of the United Nations concerning the prevention and suppression of terrorism and its financing, as well as the prevention, suppression, and halting of proliferation and its financing.
The Crime	:	The crime of Money Laundering and the predicate offences related thereto, or the financing of terrorism, or the proliferation financing.
Predicate Offence	:	Any act constituting a felony or misdemeanor, including the financing of terrorism, the proliferation financing, and evasion of direct and indirect taxes, in accordance with the applicable legislation of the State, whether committed

within or outside the State, provided that such an act is punishable in both countries.

Money Laundering : Any of the acts defined in Clause (1) of Article (2) of this Decree by Law, including its commission through digital systems, Virtual Assets, or cryptographic technologies.

Terrorist Act : Any commission, attempt, participation, organization, planning, contribution, or provision of advice in the commission of any of the following acts, or the incitement of others to commit the same, whether committed by a person or by a group of persons acting for a common purpose:

1. Any act or omission constituting a terrorist crime pursuant to Federal Law No. (7) of 2014 referred to hereinabove or any other law, or pursuant to international treaties and conventions on combating of terrorism to which the State is a party.
2. Any act or omission that is unlawfully intended to cause the death of, or to inflict serious bodily injury upon, a civilian or any other person not taking active part in hostilities in the event of an armed conflict, or to cause substantial damage to property or to the environment, where the purpose of such act, by nature or context, is to instill terror among a group of people, or to influence public authorities in the State, another country, or an international organization to perform or refrain from performing any act, or to obtain any benefit or advantage therefrom.

Terrorist : Any natural person, whether within or outside the State, who intentionally commits any of the following acts:

1. Commits or attempts to commit a Terrorist Act by any means, whether directly or indirectly.
2. Participates as an accomplice in a Terrorist Act.
3. Organizes a Terrorist Act or incites others to commit it.
4. Participates with a group of persons acting with a common intent to commit a Terrorist Act for the purpose of expanding terrorist activity or to commit such act, knowing the group's intention.

Terrorist Organization : A group of two or more persons, whether within or outside the State, that has committed a terrorist act, directly or indirectly, or has threatened to commit it, aims, plans, or seeks to commit it, or promotes or participates in its commission, whether directly or indirectly, regardless of its name, form, place of establishment, location, activity, or the nationality or residence of its members; including any organization recognized as a Terrorist Organization under any other law.

Financing of Terrorism : Any of the acts defined in Clause (1) of Article (3) of this Federal Decree by Law.

Proliferation : The illicit and unauthorized trade, as regulated under the applicable legislation in the State, in materials, systems, equipment, components, programs, or technology contributing to the production or development of Weapons of Mass Destruction, related technology, or their delivery means, including any act stipulated in Clause (3) of Article (3) of this Decree by Law.

Weapons of Mass Destruction : Weapons capable of inflicting harm on a large number of persons and posing a threat to human life and the natural environment through their catastrophic effects, such as nuclear, biological, chemical, or radiological weapons.

Funds	:	Assets or properties, however acquired, of any type or form, tangible or intangible, movable or immovable, electronic, digital, or cryptographic, including national and foreign currencies, legal documents, and instruments of whatever form, including electronic or digital forms, evidencing the ownership of such assets or properties, or shares or rights therein; as well as economic resources deemed as assets of any kind, including oil and other natural resources and all rights pertaining thereto, whatever their value or means of acquisition; together with bank credits, cheques, payment orders, shares, securities, bonds, bills of exchange, letters of credit, and any proceeds, profits, or other income derived or resulting therefrom, which may be used to obtain any financing, goods, or services.
Virtual Assets	:	Digital representation of value that may be digitally traded or transferred and may be used for payment or investment purposes, excluding digital representations of fiat currencies, securities, or other Funds.
Proceeds	:	Funds derived, directly or indirectly, from the commission of any felony or misdemeanor, including profits, privileges, economic interests, and other benefits derived therefrom, and any equivalent Funds that have been converted, in whole or in part, into other Funds.
Criminal Property	:	Includes the following: 1. Proceeds derived from the commission of a Money Laundering offence or Predicate Offence. 2. Property used or intended to be used in any manner, in the commission of Money Laundering or a Predicate Offence.

3. Funds constituting the subject matter of Money Laundering.
4. Funds used, intended to be used, or allocated for use in the Financing of Terrorism, Terrorist Acts, Terrorist Organizations, or Proliferation Financing.
5. Proceeds derived from the commission of financing terrorism, Terrorist Acts, Terrorist Organization, or Proliferation Financing.

Suspicious Transactions	:	Transactions involving funds for which there are reasonable grounds to suspect that they constitute Proceeds of any felony or misdemeanor, or are related to Money Laundering, Financing of Terrorism, or Proliferation Financing, whether such transactions were executed or merely attempted.
Without Prior Notice	:	The taking of an action without prior notice or involvement of the owner, Customer, or the affected Party.
Freezing	:	The prohibition imposed on the transfer, conversion, disposition, movement, or transportation of Funds or Criminal Property, pursuant to a decision issued by a Competent Authority, while such Funds remain in the possession of their owner, manager, or holder, for the duration of the validity of such decision.
Seizure	:	The prohibition imposed on the transfer, conversion, disposition, movement, or transportation of Funds or Criminal Property, pursuant to a decision issued by a Competent Authority that assumes actual control and management thereof, for the duration of the validity of such decision.

Confiscation	:	The permanent deprivation of ownership of private Funds or Criminal Property by virtue of a judgment rendered by a competent court.
Asset Recovery	:	The process of identifying, tracing, evaluating, seizing, freezing, and confiscating, as well as enforcing the relevant orders for the management of Criminal Property or Funds of equivalent value, and their disposal, restitution, delivery, or sharing.
Financial Institutions	:	Any person engaged in one or more financial activities or operations determined by the Executive Regulations of this Federal Decree by Law, on behalf of or for the benefit of a customer.
Designated Non-Financial Businesses and Professions (DNFBPs)	:	Any person engaged in one or more of the commercial or professional activities or businesses, as specified in the Executive Regulations of this Federal Decree by Law.
Non-Profit Organizations	:	Any organized group of a continuing nature for a definite or indefinite duration, consisting of natural or legal persons or a legal arrangement, not aimed at profit, which collects, receives, or disburses funds for charitable, religious, cultural, educational, social, solidarity, or other purposes that fall within the scope of benevolent acts.
Legal Arrangement	:	Trusts or other similar arrangements.
Trust	:	A legal relationship whereby the Settlor places Funds under the control of a Trustee for the benefit of a Beneficiary or for a specific purpose, and such Funds are deemed separate from the Trustee's own property, while the title thereto remains in the name of the Settlor or another person on behalf of the Settlor.

Settlor	:	A natural or legal person who transfers the management of their own Funds to a Trustee pursuant to a Trust Instrument.
Trustee	:	A natural or legal person vested with the rights and powers granted thereto by the Settlor or by the Trust, authorized thereby to manage, utilize, and dispose of the Settlor's Funds in accordance with the conditions imposed by either of them.
Customer	:	Any natural or legal person, or legal arrangement, who establishes or seeks to establish a business relationship with Financial Institutions, any of the Designated Non-Financial Businesses and Professions, or Virtual Asset Service Providers.
Transaction	:	Any disposal or utilization involving Funds or Proceeds, including, inter alia, deposit, withdrawal, transfer, sale, purchase, lending, exchange, mortgage, or donation.
Beneficial Owner	:	The natural person who owns or exercises ultimate effective control over the customer, or the natural person on whose behalf the transactions are conducted; including any person who exercises ultimate effective control over a legal person or legal arrangement, whether directly or through a chain of ownership, control, or other indirect means, and who is identified, whether one or more, in accordance with the Executive Regulations of this Decree by Law.
Virtual Asset Service Provider(s)	:	Any natural or legal person who, as a commercial activity, conducts one or more of the virtual asset activities specified in the Executive Regulations of this Decree by Law or conducts transactions related thereto, on behalf of or for the benefit of another natural or legal person.

Registrar	:	The competent authority responsible for supervising the economic or trade register of the various types of establishments registered in the State, as regulated by the legislation in force in the State.
Customer Due Diligence (CDD)	:	The process of identifying and verifying the information of a Customer or Beneficial Owner, whether a natural or legal person or a legal arrangement, as well as identifying the nature of their business, the purpose of the business relationship, and the ownership structure and control thereover, including ongoing monitoring procedures for the purposes of this Decree by Law and its Executive Regulations.
Controlled Delivery	:	An approach whereby the competent authorities, under their supervision, allow the entry into, passage through, transit across, or exit from the State of illicit or suspicious funds, or proceeds of crime for the purpose of detecting an offense and identifying its perpetrators.
Undercover Operation	:	An investigation and detection approach whereby a Judicial Enforcement Officer operates under an assumed or false identity or performs a covert or deceptive role for the purpose of obtaining evidence or information related to an offense.

Chapter Two

Crimes of Money Laundering, Financing of Terrorism, and Proliferation

Financing

Article (2)

1. A person shall be deemed to have committed money laundering if that person knows or there are sufficient indications or evidence to believe that the Funds, in whole or in part,

are the Proceeds of a Predicate Offence, and intentionally commits any of the following acts:

- a. Converts, transfers, or carries out any transaction involving the Proceeds for the purpose of concealing or disguising their illicit origin.
 - b. Conceals or disguises the true nature of the proceeds, source, location, disposition, movement, ownership, or rights related thereto.
 - c. Acquires, possesses, or uses the Proceeds upon receipt thereof.
 - d. Assists the perpetrator of the Predicate Offence in evading punishment therefor.
2. Money Laundering shall be deemed an independent crime, and shall be excluded from the application of the provisions on concurrence prescribed under Federal Decree by Law No. (31) of 2021 referred to hereinabove; and the punishment or non-punishment of the perpetrator of the Predicate Offence shall not preclude their punishment for Money Laundering.
 3. Conviction of the Predicate Offence shall not be required to establish the illegitimate source of the Proceeds, nor shall it be required to prove knowledge of the specific type or nature of the predicate offence from which the proceeds were derived. Such knowledge, being an element of the Crime, may be inferred from the factual and objective circumstances attendant upon its commission.

Article (3)

1. Whoever intentionally provides, collects, or makes available Funds by any means, directly or indirectly, including through the use of digital systems, Virtual Assets, or cryptographic technologies, with knowledge that such Funds shall be used, in whole or in part, in any of the following cases, shall be deemed to have committed Financing of Terrorism:
 - a. The commission of a Terrorist Act or Terrorist Acts;
 - b. By a Terrorist or a Terrorist Organization;
 - c. Financing the travel of individuals to a State other than that of their residence or nationality for the purpose of committing, preparing, planning, or participating in, or facilitating a Terrorist Act, or providing the necessary Funds for training on Terrorist Acts or for receiving such training.

2. For the purposes of Clause (1) of this Article, Funds used in Financing of Terrorism shall include any Funds used in whole or in part, whether derived from a legitimate or illegitimate source, and regardless of whether such Funds were actually used to commit or attempt to commit a Terrorist Act, or whether they are linked to any specific Terrorist Act. The Financing of Terrorism shall be deemed committed irrespective of whether the accused is located in the same State as the Terrorist or the Terrorist Organization, or in the State in which the Terrorist Act is or will be committed, or in any other State.
3. Except in cases permitted or authorized under the legislation in force in the State, or pursuant to the provisions of treaties and agreements to which the State is a party, whoever intentionally commits any of the following acts shall be deemed to have committed the crime of Proliferation Financing:
 - a. Provides, collects, or makes available Funds by any means, directly or indirectly, with knowledge that such Funds shall be used, in whole or in part, for the manufacture, possession, acquisition, development, production, sale, supply, export, trans-shipment, brokerage, transport, transfer, storage, or use of Weapons of Mass Destruction, their means of delivery, or related materials, including dual-use technologies and goods, when employed for said purposes.
 - b. Any other act in accordance with the United Nations Security Council resolutions issued under Chapter VII of the Charter of the United Nations, concerning the prevention, suppression, and cessation of Proliferation and its Financing.
4. Knowledge, as an element of the Crime of Financing of Terrorism and the Crime of Proliferation Financing, may be inferred from the factual and objective circumstances attendant upon their commission.

Article (4)

A Legal Person shall be criminally liable where any of the crimes stipulated in this Decree by Law is intentionally committed in its name or for its account, without prejudice to the personal criminal liability of the perpetrator, and the administrative penalties provided for by law.

Chapter Three

Provisional Measures and Investigation Procedures

Article (5)

1. The Chief of the Unit may, without prior notice, order the cessation or temporary suspension of any Transaction suspected of being related to the Crime, for a period not exceeding ten (10) working days, based upon the Unit's analysis of Suspicious Transaction Reports, or information or requests received from domestic or international sources, including a counterpart Unit or any authority competent to take such measures.
2. The Chief of the Unit may also, without prior notice, order the Freezing of Funds suspected of being related to the Crime and held with Financial Institutions, Designated Non-Financial Businesses and Professions, or Virtual Asset Service Providers, for a period not exceeding thirty (30) days, based upon the Unit's analysis of Suspicious Transaction Reports and other information received thereby. Such order shall be subject to extension by the Attorney General or their delegate.
3. The Unit shall establish a system specifying the controls and procedures governing the cessation or suspension of Suspicious Transactions related to the Crime, and the conditions for lifting such cessation or suspension upon cancellation of the order or expiry of the prescribed term.
4. Financial Institutions, Designated Non-Financial Businesses and Professions, and Virtual Asset Service Providers shall lift the Freezing order upon its cancellation by the Chief of the Unit, or upon the expiry of the period referred to in Clause (2) of this Article, unless the same has been extended.
5. The Executive Regulations of this Decree by Law shall determine the procedures, rules, and controls governing the implementation of the provisions hereof.

Article (6)

1. The Public Prosecution and the Competent Court, as the case may be, may, without prior notice, order the identification, tracing, valuation, Seizure, or Freezing of Funds, Criminal

Property, or funds of equivalent value, as well as prohibit their management and impose a travel ban pending the completion of investigation or trial.

2. The Public Prosecution and the Competent Court, as the case may be, may, whenever required, issue decisions prohibiting the disposal or dealing in Funds or Criminal Property, or funds of equivalent value, and take the necessary measures to prevent any act intended to evade Seizure, Freezing, or Confiscation orders, without prejudice to the rights of bona fide third parties.
3. Without prejudice to the rights of bona fide third parties, any contract or act whose parties, or one of them, knew or should have known that its purpose was affect the ability of the competent authorities to effect Seizure, Freezing, Recovery, or Confiscation judgment, shall be deemed null and void by operation of law.
4. Any interested party may file a grievance against the decisions of the Public Prosecution relating to Seizure, Freezing, or those prohibiting dealing or disposing of Funds or Criminal Property, or funds of equivalent value, or against the extension of Freezing ordered by the Attorney General or their delegate pursuant to Clause (2) of Article (5) of this Decree by Law. The grievance shall be adjudicated by the competent Criminal Court within whose jurisdiction the Public Prosecution department issuing the decision is located, or which is competent to hear the criminal case.
5. The grievance shall be filed by way of a written report submitted to the competent Court, whereupon the chief justice of the Court shall fix a session for its consideration and notify the complainant thereof. The Public Prosecution shall submit a memorandum stating its opinion in respect of the grievance, and the Court shall decide thereon within a period not exceeding fourteen (14) working days from the date of submission.
6. The decision rendered in the grievance shall be final and not subject to appeal. Should the grievance be rejected, no new grievance may be submitted until the lapse of three (3) months from the date of rejection, unless a serious and substantial reason arises prior to such lapse.
7. The Executive Regulations of this Decree by Law shall specify the procedures, rules, and controls for implementing the provisions hereof.

Article (7)

The Public Prosecution and the Competent Court, as the case may be, may assign the Accused, or any person deemed appropriate, to manage the Funds or Criminal Property, or funds of equivalent value, that have been Seized, Frozen, or subjected to Confiscation. The Executive Regulations of this Decree by Law shall set forth the conditions for estimating the remuneration and expenses of such management, the order of their disbursement, and the rules and controls for implementing the provisions hereof.

Article (8)

1. Without prejudice to the provisions of Article (6) of this Decree by Law, the criminal case shall be filed against any person committing Money Laundering, Financing of Terrorism, or Proliferation Financing, as stipulated in Articles (2) and (3) hereof, by the Attorney General or their delegate. It shall be filed in respect of other Crimes under this Decree by Law in accordance with the procedures prescribed by law.
2. The Attorney General or their delegate and the Competent Court, as the case may be, may issue decisions to take the necessary measures for the protection of intelligence information and the methods or means of obtaining the same, or to direct the competent authorities to provide protection to witnesses, confidential sources, Accused persons, or other parties to the proceedings, whenever there exists a serious and substantiated concern for their safety.

Article (9)

1. The Public Prosecution may, either on its own initiative or upon request of Law Enforcement Authorities, where sufficient indications of the commission of the Crime exist, order direct access to accounts, registers, documents, and records in the possession of third parties; it may also order access to the contents of computer systems, means of information technology, correspondence, communications, and parcels; as well as the identification, tracing, and seizure of Funds; monitoring of accounts; and imposition of

travel bans, in addition to any other measures that may assist in uncovering the Crime and its perpetrators, without prejudice to the legislation in force within the State.

2. The Public Prosecution may seek the opinion of the Unit regarding the financial aspects of the Crime and their analysis.
3. Law Enforcement Authorities shall receive and follow up on the reports of the Unit, collect the evidence related thereto, and provide the Unit with feedback concerning the procedures taken in respect thereof.
4. Law Enforcement Authorities may obtain such information as they deem necessary for identifying and tracing Funds or Criminal Property, or Funds of corresponding value, as well as any other data necessary for the performance of their duties, in accordance with the manner prescribed by the Executive Regulations of this Decree by Law.
5. Law Enforcement Authorities may conduct Undercover Operations and employ other investigative techniques, as well as undertake Controlled Deliveries, whenever such measures may lead to the detection of the Crime, its evidence, or the identification of the source and destination of Funds or Criminal Property, or the apprehension of perpetrators, without prejudice to the legislation in force within the State.
6. No criminal liability shall attach to any person assigned by Law Enforcement Authorities to investigate by means of an Undercover Operation or Controlled Delivery, in respect of any act which might otherwise constitute a Crime, unless such person has incited the commission thereof or exceeded the powers granted to them.

Chapter Four

Disclosure

Article (10)

Any person entering into or departing from the State shall be under the obligation to make a disclosure whenever they carry currencies, bearer negotiable instruments, precious metals, or valuable stones, in accordance with the disclosure system issued by the Federal Authority for Identity, Citizenship, Customs and Port Security, in coordination with the Central Bank.

Chapter Five
The Financial Intelligence Unit
Article (11)

An independent “Financial Intelligence Unit” shall be established within the Central Bank and shall act independently. All Suspicious Transaction Reports and information related thereto shall be submitted thereto, exclusively, by all Financial Institutions, Designated Non-Financial Businesses and Professions and Virtual Asset Service Providers. The Unit shall undertake the study and analysis thereof, and shall refer the same to the Concerned Authorities either automatically or upon request, and shall be vested with the following competences:

1. To request from Financial Institutions, Designated Non-Financial Businesses and Professions, Virtual Asset Service Providers, and the Concerned Authorities, the provision of any additional information or documents related to the reports and information received, as well as any other information deemed necessary for the performance of its duties, within the timeframe and in the form prescribed by the Unit.
2. To exchange information and cooperate, automatically or upon request, with counterpart units and other competent authorities with respect to the suspension or cessation of operations suspected to be associated with the Crime, regarding such operations, Suspicious Transaction Reports, or any other information which the Unit is empowered to obtain or access, whether directly or indirectly. The Unit shall likewise exchange information with Concerned Authorities within the State to facilitate such cooperation and shall notify the counterpart units of the results of the utilization of the information provided and of the analyses conducted thereon. Such information may only be used for the purposes of combating the Crime and shall not be disclosed to any third party without the approval of the Unit.
3. To conclude Memoranda of Understanding for the purpose of regulating cooperation and the exchange of information with counterpart units and Concerned Authorities.
4. To establish and maintain a database of the information in its possession, and to protect the same by imposing rules governing the security and confidentiality of information, including the implementation of cybersecurity measures and procedures for processing,

storing, and transmitting information, and to ensure that access to its facilities, data, and technical systems is restricted.

5. Any other competences in accordance with the provisions of this Decree by Law or as may be prescribed by its Executive Regulations.

Chapter Six

National Coordination and Cooperation

Article (12)

By virtue of the provisions of this Decree by Law, a committee shall be established and shall be known as the “Supreme Committee for the Supervision of the National Strategy for Anti-Money Laundering and Combating the Financing of Terrorism, and Proliferation Financing”, affiliated with the Presidential Court, and its formation and rules of procedure shall be determined by a resolution issued by the Cabinet. The Committee shall exercise the following competences:

1. To study, monitor, and evaluate the effectiveness of the strategies and measures adopted by the National Committee, and to issue recommendations and decisions thereon.
2. To determine the requirements to be followed and fulfilled by the National Committee and the Concerned Authorities in the performance of their duties, to issue the appropriate resolutions in that regard, and to supervise and monitor the implementation thereof.
3. To coordinate with and direct the Concerned Authorities to provide the necessary support to the National Committee in order to facilitate the performance and execution of its duties.
4. To issue decisions concerning the supervision of the Mutual Evaluation Process of the State with respect to combating Money Laundering, Financing of Terrorism, and Proliferation Financing.
5. To propose draft laws relating to its functions and those of the National Committee, and to propose amendments to existing relevant legislation and submit the same to the Cabinet.

6. To propose the required financial allocations for the federal entities concerned for implementing the national strategy for combating the Crime, following coordination with the Ministry, for submission to the Cabinet for approval within the Federal General Budget.
7. Any other competences and tasks determined by the Cabinet.

The Cabinet may delegate the Chairman of the Supreme Committee to issue its rules of procedure.

Article (13)

Pursuant to the provisions of this Decree by Law, a committee shall be established under the chairmanship of the Governor, to be known as the “National Committee for Combating Money Laundering, the Financing of Terrorism, and Proliferation Financing”, the formation of which shall be determined by a resolution issued by the Cabinet, upon the proposal of the Minister.

Article (14)

The National Committee shall be competent for the following:

1. To establish and develop a National Strategy for combating the Crime, and to establish related regulations, procedures, and policies in coordination with the Concerned Authorities, and to follow up on their implementation.
2. To identify and assess the risks of the Crime at the national level.
3. To coordinate with the Concerned Authorities and refer to the relevant international information sources to identify high-risk countries and those suffering deficiencies in their regulations for combating Money Laundering, Financing of Terrorism, and Proliferation Financing, and to determine the countermeasures and other appropriate measures commensurate with the degree of risk, and to direct the Supervisory Authorities to verify the compliance of Financial Institutions, Designated Non-Financial Businesses and Professions, Virtual Asset Service Providers, and Non-Profit Organizations with the application thereof, without obstructing or delaying their legitimate and charitable activities.

4. To coordinate among the represented entities to enhance the effectiveness of combating the Crime, and to facilitate operational cooperation and the timely exchange of information, whether automatically or upon request.
5. To assess the effectiveness of the national regulations for combating Money Laundering, Financing of Terrorism, and Proliferation Financing by collecting and analyzing statistics and other relevant information from the Concerned Authorities.
6. To monitor the Mutual Evaluation Process of the State to measure the extent of its compliance with the international standards for combating Money Laundering, Financing of Terrorism, and Proliferation Financing, and to submit proposals and recommendations to the Supreme Committee, and to implement the resolutions issued thereunder.
7. To represent the State in international fora related to combating Money Laundering, Financing of Terrorism, and Proliferation Financing.
8. To propose the organizational regulation governing its operations, and to submit the same to the Minister for approval.
9. To consider any matters referred thereto by the Concerned Authorities within the State.
10. Any other competences may be determined by the Executive Regulations of this Decree by Law.

Article (15)

1. The National Committee shall have a General Secretariat, headed by a Secretary-General, and shall include a number of employees.
2. The Secretary-General shall act as Deputy Chairman of the National Committee and as a member of the Supreme Committee and shall be appointed by a resolution of the Cabinet.
3. The organization of the General Secretariat, its organizational structure, determination of its competences, rules of procedure, and its financial and administrative regulations shall be determined by a decision issued by the Chairman of the Supreme Committee, upon the proposal of the Chairman of the National Committee. The Chairman of the Supreme Committee may delegate the Chairman of the National Committee to issue all or part of such decisions. In all cases, the Chairman of the National Committee shall be entitled to

amend the organizational structure of the General Secretariat below the level of departments.

Chapter Seven

Supervisory Authorities and Administrative Penalties

Article (16)

The Supervisory Authorities shall, within their respective areas of competence, undertake the duties of supervision, monitoring, and follow-up to ensure compliance with the provisions set forth in this Decree by Law, its Executive Regulations, and any other decisions issued thereby in connection therewith. In particular, the Supervisory Authorities shall have the following competences:

1. To conduct risk assessments concerning the likelihood of the Crime occurring within Financial Institutions, Designated Non-Financial Businesses and Professions, activities of Virtual Asset Service Providers, and Non-Profit Organizations.
2. To perform supervisory and inspection operations, whether desk-based or field-based, over Financial Institutions, Designated Non-Financial Businesses and Professions, Virtual Asset Service Providers, and Non-Profit Organizations.
3. To maintain statistics on the measures undertaken and the penalties imposed.
4. Any other competences as provided under the provisions of this Decree by Law or as may be determined by its Executive Regulations.

Article (17)

1. Without prejudice to any more severe administrative sanction prescribed under any other legislation, the Supervisory Authority may impose the following administrative penalties upon Financial Institutions, Designated Non-Financial Businesses and Professions, Virtual Asset Service Providers, and Non-Profit Organizations under its supervision, in the event of their violation of any provision of this Decree by Law, its Executive Regulations, or any other decisions issued thereby in connection therewith:
 - a. Warning.

- b. An administrative fine of not less than ten thousand dirhams (AED 10,000) and not exceeding five million dirhams (AED 5,000,000) for each violation.
 - c. Prohibiting the violator from engaging in the sector relevant to the violation for a period to be determined by the Supervisory Authority.
 - d. Restricting the powers of board members, executive, supervisory, or managerial personnel, or owners proven responsible for the violation, including the appointment of a temporary supervisor.
 - e. Suspending directors, board members, or executive or supervisory personnel proven responsible for the violation for a period to be determined by the Supervisory Authority or requesting their replacement.
 - f. Suspending or restricting the activity or profession for a period to be determined by the Supervisory Authority.
 - g. Revocation of the license.
- 2. Notwithstanding Paragraph (G) of Clause (1) of this Article, the Supervisory Authority may, upon imposing administrative penalties, issue an order requiring the submission of periodic reports on the measures undertaken to remedy the violation.
 - 3. The Supervisory Authority may impose an incremental administrative fine in the event of recurrence of the same violation within a period not exceeding one year from the date of the prior administrative fine imposed therefor.
 - 4. In all cases, the Supervisory Authority may publish the administrative penalties imposed by it through various media outlets.
 - 5. The mechanism for sharing the administrative fines imposed by local Supervisory Authorities shall be determined by a resolution of the Cabinet upon the recommendation of the Minister.

Chapter Eight

Preventive Measures, Transparency, and Beneficial Owners

Article (18)

1. Where Financial Institutions, Designated Non-Financial Businesses and Professions, or Virtual Asset Service Providers suspect, or have reasonable grounds to suspect, that a Transaction or Funds, in whole or in part, represent Proceeds or are related to or intended to be used in the Crime, regardless of their value, they shall notify the Unit without delay and directly, by providing a detailed report containing all available data and information concerning such Transaction and the relevant parties, through the electronic system designated by the Unit or by any other approved means, and shall furnish any additional information requested by the Unit, without invoking confidentiality provisions.
2. The provision of Clause (1) of this Article shall not apply to lawyers, notaries, other legal professionals, or independent legal auditors, where the information relating to such Transactions was obtained under circumstances subjecting them to professional secrecy.
3. The Executive Regulations of this Decree by Law shall determine the rules, controls, and cases requiring the reporting of Suspicious Transactions.

Article (19)

1. Financial Institutions, Designated Non-Financial Businesses and Professions, and Virtual Asset Service Providers shall comply with the following:
 - a. Identify, understand, manage, assess, document, and continuously update the risks of the Crime within their business scope, taking into consideration the risk-based approach and the multiple aspects of risks as defined by the Executive Regulations of this Decree by Law, while retaining the risk assessment study and related information, and providing the same to the Supervisory Authority upon request.
 - b. Implement Customer Due Diligence (CDD) Measures and continuous monitoring procedures, determining their scope based on the multiple risk dimensions and with due regard to the outcomes of the national risk assessment, while retaining the information obtained from implementing such measures. The Executive Regulations

shall specify the cases in which such measures apply, the types of measures, and the conditions for deferring the completion of Customer or Beneficial Owner identification.

- c. Refrain from opening or maintaining accounts, or conducting any financial or commercial transactions, under anonymous, fictitious, alias, or numbered names, or providing any services thereto.
 - d. Establish internal policies, controls, and procedures, approved by senior management, enabling them to manage and mitigate identified risks, and to review and update the same on a continuous basis, ensuring their application to all branches and subsidiary companies in which they own a majority share. The Executive Regulations shall specify the minimum requirements of such policies, controls, and procedures.
 - e. Implement forthwith the instructions issued by the Executive Office or any other Competent Authorities concerning Targeted Financial Sanctions.
 - f. Retain all records, documents, and data relating to Transactions, whether domestic or international, ensuring their immediate availability to Competent Authorities upon request, pursuant to the provisions of the Executive Regulations of this Decree by Law.
 - g. Any other obligations stipulated in the Executive Regulations of this Decree by Law.
2. For the purposes of this Decree by Law, the Executive Regulations shall regulate the following:
- a. The obligations of Non-Profit Organizations.
 - b. The obligations of the Registrar and Competent Authorities regulating Legal Arrangements.
 - c. The obligations of companies, nominee directors, and nominee shareholders.
 - d. The obligations pertaining to the Legal Arrangement, the Trustee, and any person occupying an equivalent position.
3. The Cabinet shall issue a resolution regulating the procedures of identifying the Beneficial Owner.

Article (20)

No natural or legal person shall engage in any Financial Activities, Designated Non-Financial Businesses and Professions, Virtual Asset Service Providers, or Virtual Asset Service Provider activities without obtaining a license, registration, or enrolment from the Competent Authority or from the relevant Supervisory Authority, as the case may be.

Chapter Nine

International Cooperation and Asset Recovery

Article (21)

Without prejudice to the legislation in force within the State and to the provisions of the treaties or conventions to which the State is a party, or under the condition of reciprocity, the following shall apply:

1. None of the following shall constitute a ground for refusal of a request for international cooperation:
 - a. That the request involves matters of a financial, customs, or direct or indirect tax nature.
 - b. The mandatory confidentiality provisions applicable to Financial Institutions, DNFBPs, and Virtual Asset Service Providers, unless the relevant information has been obtained under circumstances wherein legal professional privilege or professional secrecy applies.
 - c. Any other cases specified in the Executive Regulations hereof.
2. Any judgment or judicial order issued by a competent court or judicial authority in another State providing for provisional measures or for Confiscation in any of its forms of Criminal Property or of Funds equivalent in value thereto, relating to a Predicate Offence or Money Laundering, may be executed without the need for national investigations.
3. The Concerned Authorities shall accord priority to all requests for international cooperation, particularly those related to the Crime, and shall execute such requests expeditiously; they shall exchange information with competent foreign authorities, both counterpart and non-counterpart, automatically and upon request, and shall take

effective measures to preserve the confidentiality of the information received and to use the same solely for the purpose for which it was requested or provided.

4. The competent judicial authorities, upon request from a judicial authority in another State, shall provide mutual legal assistance in investigations, prosecutions, or proceedings related to the Crime, and may order the following:
 - a. The identification, tracing, evaluation, Seizure, Freezing, or Confiscation of Funds, Criminal Property, or funds of equivalent in value, or any other measures applicable in accordance with the legislation in force within the State, including the provision of records held by Financial Institutions, DNFBPs, Virtual Asset Service Providers, or Non-Profit Organizations; the search of persons and premises; the taking of witness statements; the obtaining of evidence; and the use of investigative techniques such as Undercover Operations, interception of communications, electronic data and information gathering, and Controlled Delivery.
 - b. The surrender and recovery of persons and Criminal Property.
5. The Concerned Authorities shall exchange, to the maximum extent possible, information related to the Crime with competent foreign authorities, obtain on their behalf any other required information, and execute the requests received therefrom.
6. The Executive Regulations of this Decree by Law shall determine the rules, controls, and procedures governing international cooperation.

Article (22)

1. The Cabinet shall, based upon a proposal from the Minister and after coordination with the Concerned Authorities, issue a resolution regarding the determination and regulation of the procedures for the recovery and management of assets that are Seized, Frozen, or subject to Confiscation, provided that such resolution specifies the entities responsible for Asset Recovery and management and the circumstances of their disposal.
2. Subject to the procedures of sharing Criminal Property or Funds equivalent in value thereto, the proceeds of their sale, upon the issuance of a final judgment of Confiscation, shall remain charged, within their value, with any rights lawfully vested in any bona fide party.

3. The Concerned Authorities shall cooperate, coordinate, and exchange information among themselves in order to enhance the effectiveness of Asset Recovery.

Chapter Ten

Statistics

Article (23)

1. The Concerned Authorities shall maintain comprehensive statistics on Suspicious Transactions reports, investigations, judgments related to the Crime, Funds Frozen, Seized, and Confiscated, requests for international cooperation, and any statistics pertaining to the effectiveness and adequacy of the measures combating the Crime.
2. The General Secretariat shall, in coordination and cooperation with the Concerned Authorities, maintain a centralized national statistical database regarding the combating of Money Laundering, Financing of Terrorism, and Proliferation Financing, ensuring the quality, consistency, and regular updating of the data.

Chapter Eleven

Confidentiality of Information

Article (24)

Information obtained in relation to Suspicious Transactions or to any of the Crimes stipulated in this Decree by Law shall be deemed confidential, and may only be disclosed to the extent necessary for its use in investigations or proceedings related to violations of the provisions of this Decree by Law, or in other cases permitted by law.

Chapter Twelve

Penalties

Article (25)

The penalties prescribed in this Decree by Law shall be imposed without prejudice to any more severe penalty provided for in any other law.

Article (26)

1. Whoever commits the Crime of Money Laundering shall be punished with imprisonment for a term not less than one (1) year and not exceeding ten (10) years, together with a fine of not less than one hundred thousand dirhams (AED 100,000) and not exceeding five million dirhams (AED 5,000,000), or an amount equivalent to the value of the relevant Criminal Property; whichever is greater.
2. The penalty shall be temporary imprisonment and a fine of not less than one million dirhams (AED 1,000,000) and not exceeding ten million dirhams (AED 10,000,000), or an amount equivalent to twice the value of the relevant Criminal Property; whichever is greater, if the perpetrator commits the Crime of Money Laundering in any of the following circumstances:
 - a. Where they exploit their influence or authority conferred upon them by virtue of their position or professional activity;
 - b. Where the act is committed through a Non-Profit Organization;
 - c. Where the act is committed through an organized criminal group;
 - d. Where the Predicate Offence is one of the crimes set forth in Chapter Seven of Part One or Chapter One of Part Two of Book Two of Federal Decree by Law No. (31) of 2021 referred to hereinabove, or in Federal Decree by Law No. (30) of 2021 referred to hereinabove;
 - e. In case of recidivism.
3. Whoever commits the Crime of Financing of Terrorism shall be punished with life imprisonment or temporary imprisonment for a term not less than ten (10) years, and a fine of not less than one million dirhams (AED 1,000,000) and not exceeding ten million dirhams (AED 10,000,000), or an amount equivalent to twice the value of the relevant Criminal Property; whichever is greater.
4. Whoever commits the Crime of Proliferation Financing shall be punished with temporary imprisonment and by a fine of not less than one million dirhams (AED 1,000,000) and not exceeding ten million dirhams (AED 10,000,000), or an amount equivalent to twice the value of the relevant Criminal Property; whichever is greater.

5. The attempt to commit the crimes of Money Laundering, Financing of Terrorism, and Proliferation Financing shall be punishable with the same penalty prescribed for the consummated crime.
6. The Court may, upon the request of the Attorney General or their delegate, or sua sponte, mitigate or exempt from the penalty prescribed in this Article any offender who voluntarily provides the judicial or administrative authorities with information concerning any of the crimes punishable under this Article, if such information leads to their disclosure, the identification or apprehension of their perpetrators, the establishment of proof against them, or the seizure of the Criminal Property.

Article (27)

1. Without prejudice to any more severe penalty prescribed by another law, every legal person whose representatives, directors, or agents have, on its behalf or in its name, committed the Crimes of Money Laundering, Financing of Terrorism, or Proliferation Financing, shall be punished with a fine of not less than five million dirhams (AED 5,000,000) and not exceeding one hundred million dirhams (AED 100,000,000), or an amount equivalent to the value of the Criminal Property involved; whichever is greater.
2. Every legal person whose representatives, directors, or agents have, on its behalf or in its name, committed any of the offences punishable under Articles (28), (29), (30), (32), (33), (34), or (35) hereof, shall be punished with a fine of not less than two hundred thousand dirhams (AED 200,000) and not exceeding ten million dirhams (AED 10,000,000).
3. In case of conviction of the legal person for the Financing of Terrorism or the Proliferation Financing, the Court shall order its dissolution and the closure of the premises wherein its activity is conducted.
4. The Court may, in case of conviction of the legal person for the Crime of Money Laundering, or in the event of violation of Article (10) of this Decree by Law, order its dissolution and the closure of its premises.
5. In the cases where any of the Crimes referred to in Clauses (1) and (2) of this Article are committed, the person responsible for the actual management of the legal person shall be punished by imprisonment and a fine, or by either of the two penalties, if it is proven that

they were aware thereof and that the commission of such Crime was due to their breach of the duties of their position.

6. The Court, upon pronouncing a conviction, may order the publication of a summary of the judgment by appropriate means, at the expense of the convicted person.

Article (28)

Whoever deliberately or through gross negligence violates the provisions of Article (18) hereof shall be punished by imprisonment and a fine of not less than one hundred thousand dirhams (AED 100,000) and not exceeding one million dirhams (AED 1,000,000), or by either of these two penalties.

Article (29)

1. Any person who notifies or warns another person, or discloses any information related to Transactions under review concerning Suspicious Transactions, or reveals that the Competent Authorities are conducting inquiries or investigations in respect thereof, in contravention of Article (24) hereof, shall be punished by imprisonment and a fine of not less than fifty thousand dirhams (AED 50,000), or by either of these two penalties.
2. Any person who deliberately or through gross negligence breaches the duties of managing the Funds entrusted to them, or violates any order issued by a competent authority regarding Seizure, Freezing, or other precautionary measures, shall be punished by imprisonment and a fine of not less than fifty thousand dirhams (AED 50,000), or by either of these two penalties.
3. The punishment shall be imprisonment for a period of not less than one year and a fine equal to the value of the Proceeds, provided that such fine shall not be less than one hundred thousand dirhams (AED 100,000), in the event that any of the acts mentioned in Clauses (1) and (2) of this Article result in the inability to seize the Proceeds, or in their destruction or loss of value.

Article (30)

1. Any person who possesses, conceals, or conducts any Transaction in Funds where there are sufficient indications or evidence suggesting the illegitimacy of their source, or the concealment of the Beneficial Owner thereof, shall be punished by imprisonment for a period not less than three (3) months and a fine of not less than fifty thousand dirhams (AED 50,000), or by either of these two penalties.
2. Any person who promotes, offers for sale, provides services, or deals in Virtual Assets characterized by total anonymity, or that prevent or obstruct the ability of the Competent Authorities to trace the Transaction or its parties, or any unlicensed accounts or technologies allowing such concealment, shall be punished by imprisonment for a period not less than three (3) months and a fine of not less than fifty thousand dirhams (AED 50,000), or by either of these two penalties.
3. Upon conviction, the Court shall order Confiscation in accordance with the provisions of Article (31) hereof.

Article (31)

1. Where the Crime is proven, the Court shall order the Confiscation of the following:
 - a. The Criminal Property;
 - b. Any Funds owned by the offender equivalent to the value of the Criminal Property, in cases where such property has been mingled with legitimate Funds, cannot be seized, or is subject to the rights of bona fide third parties.
2. Confiscation shall be enforced irrespective of whether the Criminal Property is in the possession or ownership of the offender or of another party, without prejudice to the rights of bona fide third parties.
3. If it is impossible to order Confiscation of the Criminal Property or of Funds equal in value thereto, due to their unavailability or the existence of bona fide third-party rights, the Court shall impose a fine equivalent to their value at the time of the commission of the Crime.
4. The anonymity of the perpetrator, the absence of their criminal liability, or the lapse of the criminal case in relation to a punishable Crime pursuant to the provisions of this Decree

by Law shall not preclude the Court, sua sponte or upon the request of the Public Prosecution, as the case may be, from ordering Confiscation of the seized Criminal Property if its connection to the Crime is established.

Article (32)

Any person who violates the provisions of Article (20) of this Decree by Law shall be punished by imprisonment and a fine of not less than two hundred thousand dirhams (AED 200,000) and not exceeding ten million dirhams (AED 10,000,000), or by either of these two penalties.

Article (33)

Any person who violates the instructions issued by the Executive Office or any other Competent Authority related to Targeted Financial Sanctions shall be punished with imprisonment and a fine of not less than twenty thousand dirhams (AED 20,000), or by either of these two penalties.

Article (34)

Any person who violates the provisions of Article (10) of this Decree by Law, or refrains from providing additional information where requested, or deliberately conceals information required to be disclosed, or knowingly provides false information, shall be punished by imprisonment and a fine, or by either of these two penalties. The Court may, upon conviction, order the Confiscation of the seized Funds, without prejudice to the rights of bona fide third parties.

Article (35)

1. Any person who intentionally provides false or misleading information concerning the Beneficial Owner to any Competent Authority requesting such information, or to Financial Institutions, DNFBPs, or Virtual Asset Service Providers, shall be punished by imprisonment and a fine of not less than twenty thousand dirhams (AED 20,000), or by either of these two penalties.

2. Any person who unlawfully enables another person to benefit from their account with a Financial Institution or a Virtual Asset Service Provider, while knowing, or having sufficient grounds to believe, that such use is intended for the misuse of the account, shall be punished by imprisonment and a fine, or by either of these two penalties.
3. Any person who violates the provisions of Clause (1) and paragraphs (A), (C), and (D) of Clause (2) of Article (19) of this Decree by Law shall be punished by imprisonment and a fine of not less than ten thousand dirhams (AED 10,000), or by either of these two penalties.

Article (36)

1. Where a foreigner is punished with a custodial sentence due to the commission of the Crime of Money Laundering or any of the felonies stipulated in this Decree by Law, the judgment must include an order for their deportation from the State.
2. Without prejudice to the provision of Clause (1) of this Article, where a foreigner is convicted, in relation to other misdemeanors stipulated in this Decree by Law and sentenced to a custodial penalty, the court may order their deportation from the State, or impose deportation in lieu of the custodial penalty.

Article (37)

1. No criminal, civil, or administrative liability shall be incurred by the Supervisory Authorities, the Unit, the Law Enforcement Authorities, the Financial Institutions, the DNFBPs, the Virtual Asset Service Providers, or by the members of their Boards of Directors, employees, and legally authorized representatives, as a result of furnishing any of the required information or breaching any statutory, contractual, or administrative restriction imposed to ensure the confidentiality of information, even if they were not fully aware of the nature or actual occurrence of the Crime, unless it is proven that the reporting was made mala fide with the intent to harm others.
2. The criminal proceedings shall not lapse by prescription in relation to the crimes of Money Laundering, Financing of Terrorism, or Proliferation Financing, nor shall the imposed

penalties extinguish by lapse of time; likewise, the civil actions arising therefrom or connected therewith shall not lapse by prescription.

3. The provisions of this Decree by Law shall not prejudice the provisions of Federal Law No. (7) of 2014 referred to herein above.
4. The Crime punishable under Article (33) of this Decree by Law, where it jeopardizes the security or interests of the State, as well as the crimes of Financing of Terrorism and Proliferation Financing, shall be deemed offences affecting the internal and external security of the State.

Chapter Thirteen

Final Provisions

Article (38)

Judicial Enforcement

By virtue of a resolution issued by the Minister of Justice or the Head of the competent local judicial authority, in coordination with the competent minister or authority, certain employees may be vested with the capacity of Judicial Officers to detect the acts committed in contravention of the provisions of this Decree by Law, its Executive Regulations, or the regulations, resolutions, and circulars issued pursuant thereto.

Article (39)

Violations and Administrative Penalties

The Cabinet shall, upon the proposal of the Minister and after coordination with the Supervisory Authority, issue a resolution prescribing the violations and administrative penalties applicable to acts committed in contravention of the provisions of this Decree by Law and its Executive Regulations, specifying the entities responsible for imposing such sanctions, the mechanism for grievance thereagainst, and the entity entrusted with the collection of administrative fines.

Article (40)

Executive Regulations

The Cabinet shall, upon the proposal of the Minister, issue the Executive Regulations of this Decree by Law.

Article (41)

Repeals

1. Federal Decree by Law No. (20) of 2018, referred to herein above, shall hereby be repealed.
2. Any provision that contradicts or conflicts with the provisions of this Decree by Law shall hereby be repealed.
3. The Executive Regulations, resolutions, and circulars issued pursuant to Federal Decree by Law No. (20) of 2018 and are in force as of the date of issuance of this Decree by Law shall remain effective insofar as they do not conflict with the provisions hereof, until the regulations, resolutions, and circulars that supersede the same are issued.

Article (42)

Publication and Entry into Force

This Decree by Law shall be published in the Official Gazette and shall enter into force (2) two weeks after the date of its publication.

Mohammed bin Zayed Al Nahyan

President of the United Arab Emirates

Issued by us at the Presidential Palace – Abu Dhabi:

On: 8 Rabi' Al- Akhir 1447 A.H.

Corresponding to: 30 September 2025 A.D.